

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN INDONESIA

Complete Community Opposition How-To

A practical manual for farmers, adat (customary) communities, fishers, and citizens' networks facing a cement plant and quarry, a mine, a coal or nickel operation, a palm-oil plantation, a dam, or a coastal reclamation on land they depend on. It explains how Indonesia's approval system actually works, where the openings are, and how to use the levers Indonesian law and Indonesia's own history of resistance provide. It can't promise any project can be stopped — it offers a method that gives you the best chance.

INTRODUCTION & FRAMEWORK

Hold onto one fact before anything else, because it's true and it's Indonesian: **a group of farmers took a state-owned cement company all the way to the Supreme Court and won — the court found the environmental assessment unlawful and ordered the permit revoked.**

That's **Kendeng**. When the state-owned cement producer PT Semen Indonesia planned an 850-hectare plant and limestone quarrying in the Kendeng karst mountains of Central Java — the range whose springs feed the rice fields of Rembang, Pati, and beyond — the farmers, many from the Samin community with its long tradition of peaceful resistance, organised as the People's Network for the Kendeng Mountains (**JMPPK**). With the environmental group **WALHI** and the **Semarang Legal Aid Institute**, they sued over the environmental permit. When the courts first went against them, the women of Kendeng travelled to Jakarta and set their feet in blocks of hardening cement in front of the presidential palace — the "Kartinis of Kendeng," an image that swept the country. And in October 2016, the Supreme Court, on judicial review, ruled for them: the environmental impact assessment the governor had approved was unlawful — it failed to show how the quarrying would protect the water basin, and it hadn't properly taken the community's views into account — and it ordered the permit revoked. Farmers had beaten a state company in the highest court.

What makes Kendeng winnable is the toolkit underneath. Indonesia's Constitution guarantees the **right to a good and healthy environment**, and protest, litigation, and petition are lawful. There's an environmental law with an **impact-assessment and approval system** and real openings for participation; **administrative courts that can annul a permit**, a Supreme Court that reviews them, and a Constitutional Court that has **recognised the forest rights of adat communities**; an experienced environmental and legal-aid movement; a public-information law; and a free press. And there's a shield most countries lack: a law that says **anyone fighting for a good environment cannot be sued or prosecuted for it**. But these tools have real limits, and this guide states them plainly — and it is the most important lesson Kendeng teaches: winning in court did not, by itself, save the mountain. After the ruling, the governor revoked the old permit and then issued a *new* environmental permit for the same project — an act the community saw as circumventing the court. The struggle went on through blockades and a 135-kilometre protest march, and it cost a life: a farmer named Patmi died during the Jakarta protests. Indonesia shows both what a determined community and its courts can achieve — an unlawful assessment struck down, a state company stopped, a president forced to order a review — and how hard it is to turn a court victory into protection on the ground when officials re-issue permits and the backers push on.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Indonesian project needs an **environmental impact assessment (AMDAL)** and an **environmental approval**; it needs the business and sectoral licences that flow from that approval; on forest land it may run into the **rights of adat communities** the Constitutional Court has recognised; on farmland and in water-catchment areas it collides with laws protecting food land and water; it must survive the **administrative courts** and the Supreme Court; and it must avoid a watchful press. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If adat or customary-land rights are engaged, you have a real shield** — the Constitutional Court has ruled that customary forests are not state forests.
- **If the AMDAL is flawed or the assessment ignored the water and the community, and you can reach the courts, the tools genuinely bite** — that's the Kendeng route.
- **If a state company or a "national strategic project" is behind it, it's hard** — winning in court may not be enough if officials re-issue permits, so aim at delay, conditions, exposure, and sustained pressure, and protect your people, because defenders here face real danger.

And know the honest headwind: the **Omnibus (Job Creation) Law** narrowed public participation in the AMDAL to "directly affected communities," scrapped the assessment commission that used to hear civil-society objections, fast-tracked licensing, and restricted challenges at the administrative court. The levers below are real, but that law made several of them harder — plan around it.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the AMDAL openings, adat rights, the courts, the anti-SLAPP shield — and **run every front at once**: the documents, the AMDAL, the courts, the movement, the press.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core decision is the **environmental approval (Persetujuan Lingkungan)**, resting on the **AMDAL**. Since the Omnibus Law re-centralised licensing, much of it runs through the central government's online single-submission system, with the **Ministry of Environment and Forestry (KLHK)** and the sectoral ministries central. On forest and customary land, forest status and **adat rights** are separate questions the Constitutional Court has shaped. Know which body holds the decision you can contest, and aim there.

How a Project Moves — and Where You Jump In

The AMDAL and the environmental approval. The proponent prepares the AMDAL — the environmental impact assessment — which must show how the project protects the water, the land, and the community, and it feeds the environmental approval. *Your opening*: the AMDAL's honesty is the heart of it. Kendeng was won on the AMDAL's failure to show how quarrying the karst would protect the water basin, and its failure to genuinely hear the community. Since the Omnibus Law, participation is narrowed to "directly affected communities" and the old objection commission is gone — so establishing that you *are* directly affected, and

documenting the AMDAL's flaws, matters more than ever.

The licences. The business and sectoral licences flow from the approval. *Your opening:* a licence resting on a defective approval can be challenged.

Construction and operation. *Your opening:* breaches of the approval's conditions.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — a state company, a "national strategic project" listing, or a private consortium, which sets the political and reputational exposure. **What it still needs** — the approval not final or under challenge, adat status unresolved, financing not closed: whatever's missing is the soft spot. **Who's paying** — public and international lenders with their own environmental and social standards and grievance mechanisms.

Who's Supposed to Be Watching

Each is an ally or an arena. The **KLHK and the licensing authorities** run the approval system and can be pressed, publicly, to enforce it. The **administrative courts (PTUN)** can annul a permit, with the **Supreme Court** above them — the Kendeng route. The **Constitutional Court** has recognised adat forest rights. The **National Human Rights Commission (Komnas HAM)** takes rights complaints, including against defenders' harassment. The **audit board (BPK)** examines public money. And Indonesia's **experienced environmental movement, legal-aid network, and a free press** are the forces that reach furthest — the combination that carried Kendeng.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether adat rights are engaged, whether the AMDAL is genuinely flawed, whether you can reach the courts, and whether a state company or strategic-project listing is behind it.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Participate / object in the AMDAL	15–30%	during approval	low	On record; conditions or a redo
Administrative court (PTUN) challenge	25–45%	1–3 yr	low–mod	Permit annulled
Supreme Court judicial review	25–45%	1–3 yr	mod	Assessment struck down (Kendeng)
Citizen lawsuit / organisation standing	20–45%	1–3 yr	low	Environmental duty enforced
Adat rights (customary land)	25–50%	varies	low–mod	Customary rights asserted; project stalled
Mass movement + national press	25–50%	months–yr	low	Political cost; project reconsidered
Everything together (adat rights, world watching)	35–60%	1–4 yr	low–mod	Stopped, stalled, delayed, changed

What you do	Roughly works	How long	Cost	What "works" means
Everything together (state-backed, re-issued permits)	15–40%	1–4 yr	low–mod	Delayed, conditioned, exposed

The levers that move the needle most are the **courts** (the Kendeng route) and **adat rights**, backed by the movement and the press. Kendeng shows both the ceiling — a state company beaten in the Supreme Court — and the floor: a court win the authorities circumvented by re-issuing the permit. Most fights sit between, and honest wins include delay, conditions, and exposure as much as a clean stop.

On cost and safety: participating, documenting, and organising are cheap, and WALHI, ICEL, and the legal-aid institutes (LBH) take environmental cases. But this is dangerous ground — defenders face SLAPP suits, criminal charges, and worse. Know your shield: the environmental law says anyone fighting for a good and healthy environment cannot be sued or prosecuted for it. Still, document safely, protect the vulnerable, and route risk through the courts and institutions.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this approval, this flaw, this right — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company (state-owned or private?), whether it's a listed "national strategic project," and its financiers.

2. Where is it, and what does it touch? Get the boundaries and lay them over adat land and customary forest, water-catchment and karst, protected forest, food-growing land, a coast. **Adat rights and water are your strongest ground**, so this map is your most important document — Kendeng turned on the karst's hydrology.

3. What stage is it at, and what's the next deadline? Is the AMDAL being prepared, the environmental approval issued? Is there a permit to challenge at the administrative court (with its filing window)? These openings are time-bound.

4. What does it still need that it lacks? An approval not final, adat status unresolved, licences not issued, financing not closed. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? The affected villages, the adat community, farmers' and fishers' networks, WALHI, the legal-aid institutes. Kendeng organised a whole network across districts.

What this looks like in real life. A community learns a quarry is planned in the karst hills whose springs feed their rice. The five questions yield: a state or private company behind it; a site on water-feeding karst, perhaps adat land (the shield); an AMDAL and approval in process; a project still needing final approval and licences; and a coalition of the affected villages, WALHI, and a legal-aid institute. That's the Kendeng pattern — the farmers' network, the science of the water, and the courts.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the AMDAL, the environmental approval and its conditions, the licences, the water and forest studies. The public-information law forces out what isn't public. Then read the AMDAL hard for flaws — an understated impact, an ignored alternative, a failure to show how the water basin is protected, a "participation" that never genuinely heard the community. Kendeng was won precisely here.

Layer two: the ground truth. Dated, located photographs and video of the karst, the springs, the rice fields, the forest — baseline images before any damage most of all — and, carefully and with consent, the testimony of affected families. Protect anyone who could be endangered.

Layer three: the map of rights and water. Lay the project over adat land and customary forest, water-catchment and karst, and protected land, so each shield is visible. The hydrology — how the project would wreck the water the community depends on — is often the strongest single argument, as it was at Kendeng.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The AMDAL, the environmental approval and conditions, the licences, the water and forest studies** — from the KLHK and the licensing authorities; force out the rest under the public-information law (8A).
- **Adat and customary-land records** — from the community's own records and the adat authorities.
- **Ownership and financing** — company records, strategic-project listings, and lender documents.
- **The rights-and-water map** — adat land, customary forest, water-catchment and karst, and protected land, laid over the site.
- **Dated site evidence and consented testimony** — photographs marked with date and place, gathered so no one is put at risk.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Kendeng's farmers built a network across districts and held it for years. Build your coalition in four moves — and safely.

Start with a tight core. The families most affected, the farmers and fishers who know the land and water, a few trusted organisers, and respected community and adat leaders.

Widen the circle into a network. Pull in the neighbouring villages and districts that share the water and the threat, as JMPPK did. Hold meetings where people can see the evidence — the map of the quarry over the springs — so the community speaks with one voice in the AMDAL process, before the courts, and in the press.

Follow adat leadership where it applies. Where customary land and rights are engaged, the adat community's rights — recognised by the Constitutional Court — are among the strongest in the fight. Build the campaign around supporting that leadership, at their direction.

Bring in the allies and experts — early. Reach **WALHI**, **ICEL**, and the legal-aid institutes (**LBH**), and the scientists — especially hydrologists — who can show how the project wrecks the water. WALHI has legal standing to sue on the environment's behalf. Bring them in as partners and hand them your documents.

Build to last, and safely. These fights run for years and can turn dangerous. Build clear roles, a secure shared archive, a way to decide together, and a plan for the financial, emotional, and physical risks. Take SLAPP suits and criminal charges seriously — and know the anti-SLAPP shield in the environmental law — protect the vulnerable, and route danger through lawyers and institutions.

STEP 4: LEGAL CHALLENGES, THE COURTS & ADAT RIGHTS

Law is one of Indonesia's sharpest levers — it beat a state company at Kendeng — even though the Omnibus Law narrowed it.

The Administrative Court and the Supreme Court

The core legal route is to challenge the **environmental permit at the administrative court (PTUN)**, which can **annul** a government decision, generally within about **90 days** of learning of it — and, if needed, up to the **Supreme Court** on appeal and judicial review. This is the Kendeng route: the Supreme Court struck down an unlawful AMDAL and ordered the permit revoked. Be aware that the Omnibus Law restricted some of these challenges, so get legal advice early on exactly what can be contested and when.

Citizen and Organisation Lawsuits

Beyond the permit challenge, the environmental law opens other doors: a **citizen lawsuit (gugatan warga negara)**, a **class action** for a group of affected people, and — importantly — **legal standing for environmental organisations**, so a body like **WALHI** can sue on the environment's behalf. These widen who can bring a case and can enforce the government's and the proponent's environmental duties.

Adat Rights and the Anti-SLAPP Shield

On customary land, the **Constitutional Court's 2013 ruling** that **customary (adat) forests are not state forests** recognised adat communities' rights over their forests — a real shield where it applies, supported by the Indigenous-peoples alliance **AMAN**. And know your protection: **Article 66 of the environmental law** provides that **anyone fighting for the right to a good and healthy environment cannot be sued, criminally or civilly, for doing so** — an anti-SLAPP shield to invoke if the proponent tries to silence you with a lawsuit.

The Honest Limits

Straight talk: the courts are real and beat a state company at Kendeng — but a court win can be circumvented when officials re-issue a permit, as happened there; the Omnibus Law narrowed participation and court access; the administrative-court deadline is short; and defenders face SLAPPs and criminal charges. So use the strong tools — the administrative court, the Supreme Court, citizen and organisation suits, adat rights, the anti-SLAPP shield — but pair them with sustained pressure, the movement, and the press, protect your people, and count a permit annulled, delay, conditions, and exposure as wins alongside a clean stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A document becomes a court case. Not "the project is bad" but "*the AMDAL never showed how the quarrying would protect the water basin, and it never genuinely heard us — the approval is unlawful.*" (The Kendeng argument.)

A right becomes a shield. *"This is our customary forest; under the Constitutional Court's ruling it is not state land to be given away."*

The water becomes the strongest claim. *"This karst is the sponge that stores the water our rice depends on; destroying it destroys our livelihood."*

A threat to sue becomes their mistake. *"We are defending the right to a good environment, and the law shields us from being sued or charged for it."*

Match it to the venue: the AMDAL's flaws and the permit to the administrative court and the Supreme Court; the customary rights to the adat record and the courts; the water and the human story to the press and the public.

STEP 5: MEDIA STRATEGY

In Indonesia, national attention is a real lever — the Kartinis of Kendeng and their cement-set feet became a national image that forced a president to act, and that attention protected the people fighting. A free press and strong movements make the media front central, and it shields defenders: a watched community is harder to silence.

Lead with people and place, not procedure. Not "the AMDAL was procedurally deficient" but "the springs, the karst, the rice our families have always lived from — to be quarried away for a plant we were never truly heard about." Use your strongest material: dated photographs, the map of the project over the water, the science of the karst, and — carefully, at the community's direction — human testimony.

Work several audiences at once. Local and national press build political pressure; the environmental movement amplifies; international media and human-rights networks reach the lenders and the world. Make it easy: captioned photos, accurate summaries, a map, strong voices.

Two hard rules. Accuracy above all — one exaggeration can be used against you, including in a SLAPP suit. And protect people — in dangerous country, weigh every publication and let the community decide what is said and by whom.

EMAILS & LETTERS

Make them your own; keep them factual and calm; keep copies; and protect anyone at risk.

8A — Request for the environmental documents (to the KLHK / licensing authority).

Subject: Request for the AMDAL and environmental approval — [project].

"Under the public-information law, we, residents of [place], request the AMDAL, the environmental approval and its conditions, and the licences for [project] at [location]. As affected people we are entitled to these. [Contact.]"

8B — Participation / objection in the AMDAL.

Subject: Objection in the environmental assessment of [project].

"We, residents of [place] and directly affected by [project], object to its environmental approval: [the AMDAL fails to show how the water basin is protected / ignores our customary land / never genuinely heard us]. We

ask that these be addressed and the approval refused or a proper assessment required. [Attach evidence.]"

8C — Challenge to the permit (to a lawyer / legal-aid institute).

Subject: Administrative-court challenge to the permit for [project].

"Our community faces [project], whose environmental approval we believe is unlawful because [the AMDAL was defective / participation was denied]. We ask you to advise on a challenge at the administrative court within the deadline, and on a citizen or organisation lawsuit. [Attach the approval, the AMDAL and our evidence.]"

8D — Asserting adat / customary rights (with and at the direction of the community).

Subject: Customary rights and [project] at [location].

"The land affected by [project] is our customary (adat) land and forest, which the Constitutional Court has recognised is not state forest. We assert our rights over it and call for the project to be halted pending their proper recognition. [Contact.]"

8E — To WALHI / ICEL / a legal-aid institute.

Subject: Request for support — [project] at [location].

"Our community faces [project], which threatens [our water / customary land / forest]. We've gathered [the AMDAL, the approval, photographs, testimony] and believe there are grounds to challenge it. We ask for your legal and scientific support and to work as partners. [Contact and evidence summary.]"

8F — Invoking the anti-SLAPP shield (if threatened with a suit).

Subject: Protection under the environmental law — [name/community].

"Any action against us for our peaceful defence of [the water / forest / land] falls under the protection of the environmental law, which provides that those who fight for the right to a good and healthy environment cannot be sued or prosecuted for it. We will assert that protection fully. [Contact.]"

8G — Letter to the press.

Subject: [Community] moves to protect [karst / water / forest] from [project].

"For generations the people of [place] have lived from [the springs / the rice fields / the forest] at [location]. Now [project], by [company], threatens to [quarry / clear / drown] it, and we were never truly heard. We can provide photographs, documents, a map and — carefully — interviews. [Contact.]"

8H — Rallying the community (safely).

Subject: We can protect our land and water — here's how.

"[Project] threatens [our water / karst / forest]. Farmers once beat a state cement company in the Supreme Court — that is Kendeng, and it is Indonesian. With the courts, our adat rights, the movement, and the law that shields us behind us, we have a real chance. Please join us — carefully, protecting one another. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the project and its footprint, and look for the shield.** Lay it over adat land, customary forest, and water-catchment/karst. Customary rights and the water are your strongest ground.
2. **Get the AMDAL and read it — for the water and the participation (8A/8B).** Kendeng was won on the AMDAL's failure to protect the water basin and hear the community.
3. **Get legal advice on the administrative-court deadline (8C).** The window to challenge a permit is short.
4. **Photograph everything, with dates and places; record your adat community's decision (8D).**
5. **Reach WALHI, ICEL, or a legal-aid institute (8E) — and know your anti-SLAPP shield (8F).**
6. **Go public and find your movement (8G) — safely.** National attention pressures the institutions and protects your people.

Even lean, those six use your rights, protect the deadlines, build the record, and start a coalition.

WHEN THE SYSTEM IS TILTED

Indonesia's tools are real, but the field is often tilted, and you must plan for it.

When a state company or "strategic project" is behind it. These carry political weight and fast-tracked licences. Don't fold: use the courts, adat rights, and the water science, keep the movement and national attention alive, and make the state's backing of a flawed project a public cost. Remember Kendeng — even a Supreme Court win took sustained pressure to defend.

When officials re-issue a permit after you win. This is the hardest tilt, and it's what happened at Kendeng. A court win is not the end; pair it with the press, continued legal challenges to the *new* permit, and public pressure to make it stick.

When the Omnibus Law narrows your openings. Participation is limited to "directly affected communities" and some court challenges are restricted — so establish clearly that you are directly affected, document every flaw, and get early legal advice on what can still be contested.

When defenders are targeted. SLAPP suits, criminal charges, and worse are real. Invoke the anti-SLAPP shield in the environmental law, take every threat seriously, protect the vulnerable, work through lawyers and institutions, and use national and international attention as protection.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Indonesia has serious, documented problems with the capture of licences and land by powerful interests, so this matters.

How to spot it. Approvals granted over the technical evidence; an AMDAL that reads as written for the proponent; participation engineered to exclude the affected; permits re-issued to circumvent a court; land or contracts steered to the connected; opaque, inflated public spending.

Who's supposed to guard against it. The **Corruption Eradication Commission (KPK)** investigates graft. The **administrative courts and the Supreme Court** can annul a tainted permit. The **audit board (BPK)** examines public money. The **National Human Rights Commission (Komnas HAM)** takes rights and defender complaints. And Indonesia's **investigative press** has repeatedly exposed captured projects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Don't make public accusations you can't back; they invite SLAPP and defamation suits. Route serious evidence to the KPK and trusted journalists, protect insiders and witnesses, and pair the exposure with the legal challenge and the public campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; pinning down the rights and the water aims it; organising builds the muscle; the courts press the case; the media raises the cost and protects your people. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its footprint, and any adat or water rights; get the AMDAL and read it for the water and the participation; document the flaws; get legal advice on the court deadline; record your adat community's decision; reach WALHI or a legal-aid institute; build your core — safely.

In the thick of it (months–years): challenge the permit at the administrative court and, if needed, the Supreme Court; bring a citizen or organisation lawsuit; assert adat rights; deepen the coalition and the expert (especially hydrology) critique; open the media front — and be ready to challenge a re-issued permit.

The long haul (years): carry the case through the courts and defend any win against circumvention; keep the movement and national and international attention alive; hold the line for a permit annulled, delay, conditions, or an outright stop — and keep your people safe throughout.

FINAL ASSESSMENT

Stopping a destructive project in Indonesia can be done — farmers beat a state cement company in the Supreme Court — and the same story is honest about the price: a court win the authorities tried to circumvent, a 135-kilometre march, and a life lost. Hold both. Indonesia's tools are real: a constitutional right to a good environment; an assessment and approval you can attack; administrative courts that annul permits and a Supreme Court that reviews them; a Constitutional Court that recognised adat forest rights; citizen and organisation lawsuits; and an anti-SLAPP shield for defenders. And the constraints are real: the Omnibus Law's narrowed participation and court access, permits re-issued to dodge court wins, state-backed strategic projects, and genuine danger to defenders.

Here's the discipline that wins. Find the adat and water shield, and the flaw in the AMDAL — the failure to protect the water and hear the community — and pry loose the record. Establish that you are directly affected. Challenge the permit at the administrative court within the deadline, up to the Supreme Court, and bring a citizen or organisation lawsuit. Assert your adat rights, and invoke the shield that protects you from being sued. Carry the story to the nation and the world, protect your people, and be ready to fight a re-issued permit. Count a permit annulled, delay, conditions, and exposure as wins alongside a clean stop. That's what Kendeng did — a farmers' network, the science of the water, and the courts together. So can you.